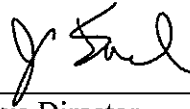


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, March 30, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23873 against Sergeant Arthur McCarthy, Tax Registry No. 949289. The case was conferenced on March 14, 2023, before Assistant Deputy Commissioner of Trials Paul M. Gamble, who approved the negotiated penalty of New York City Department Imposed Training.



Executive Director,
Jonathan Darche
New York City Civilian Complaint Review Board

DISAPPROVED

DEC 07 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23873

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, MCCARTHY	FIRST ARTHUR	M.I. P	COMMAND DRUG ENFORCEMENT TASK FORCE
SHIELD NO. 4612	TAX REGISTRY NO. 949289	SOCIAL SECURITY NO.		DATE APPOINTED 07/06/2010

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Arthur Mccarthy, on or about April 28, 2020, at approximately 1800, while assigned to INT CIS and on duty, in the vicinity of Saratoga Avenue and Newport Street, Kings County, abused his authority as a member of the New York City Police Department, in that he stopped an individual without sufficient legal authority.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.
2 . Sergeant Arthur Mccarthy, on or about April 28, 2020, at approximately 1800, while assigned to INT CIS and on duty, in the vicinity of Saratoga Avenue and Newport Street, Kings County, abused his authority as a member of the New York City Police Department, in that he frisked an individual without sufficient legal authority.	DISMISSED	
3 . Sergeant Arthur Mccarthy, on or about April 28, 2020, at approximately 1800, while assigned to INT CIS and on duty, in the vicinity of Saratoga Avenue and Newport Street, Kings County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	
4 . Sergeant Arthur Mccarthy, on or about April 28, 2020, at approximately 1800, while assigned to INT CIS and on duty,	DISMISSED	

DC Breskine

FIRST DEPUTY COMMISSIONER

9/15/23

DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

12/7/23
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23873BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, MCCARTHY	FIRST ARTHUR	M.I. P	COMMAND DRUG ENFORCEMENT TASK FORCE
SHIELD NO. 4612	TAX REGISTRY NO. 949289	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
in the vicinity of Saratoga Avenue and Newport Street, Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.				

D.C. Broekmans

FIRST DEPUTY COMMISSIONER

9/15/23

DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)*Edward A. Cab...*

POLICE COMMISSIONER

12/7/23

DATE

FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, December 7, 2023. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the First and Third Endorsement regarding Disciplinary Case No. 2021-23873 against Sergeant Arthur McCarthy, Tax No. 949289. The Police Commissioner directs that charges and specifications in this matter be dismissed and that Sergeant McCarthy will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days.

The Commanding Officer, Department Advocate shall ensure that a copy of the fully adjudicated Command Discipline is forwarded to the Police Commissioner's Office expeditiously.

Forwarded for your **NECESSARY ATTENTION**.



Tania I. Kinsella

 **FIRST DEPUTY COMMISSIONER**

TIK/pk

cc: Chief of Professional Standards
Deputy Commissioner of Trials